

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD., *Respondent*.

DOCKET NO. 24-23

Served: May 15, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

FOURTH AMENDED SCHEDULING ORDER

On May 14, 2026, the parties filed a joint motion seeking a 60-day extension to the current scheduling order. Dkt. 54. In the same filing, Respondent sought a 14-day stay of the discovery schedule. The parties note that, while they have completed 16 depositions and have tried to narrow the scope of their witnesses, they anticipate 12 more depositions, for which international travel may be required. The parties have conferred and the motion is timely. 46 C.F.R. §§ 502.71(a) & 502.102(a).

Respondent also requests a 14-day stay of discovery because Complainant seeks to claw back 158 allegedly privileged documents pursuant to the protective order. Dkt. 46. Complainant alerted Respondent to the inadvertent production of these documents on Friday, May 8, 2026, and Respondent asserts the documents are related to the depositions of Complainant witnesses that were scheduled to take place on May 12-14. Respondent does not concede that the documents are privileged and determined that it could not proceed with the depositions given the uncertainty as to whether they could be used in the examination of these witnesses. SEA consents to the stay.

I find there is good cause to **GRANT** the requested extension. The request for a stay, however, is **DENIED**. The 60-day extension provides ample time to reschedule the three depositions that were canceled because of the attempted claw back. If the parties have not resolved the privilege issue by **May 22, 2026**, they must submit the disputed documents on that date for *in camera* review. Each party may also submit a memorandum, not to exceed five pages, explaining their position. The parties will then appear for a discovery conference on **May 26, 2026**, as set forth below. If the parties resolve the privilege issue, they must file a status report and I will vacate the discovery conference.

The status report due **July 31, 2026** should detail the progress of discovery, any technical or logistical challenges related to completing discovery, and any unresolved disputes or other incomplete discovery. The parties are **ORDERED** to follow this amended schedule:

May 22, 2026	The parties must submit any remaining disputed documents for <i>in camera</i> privilege review, along with the relevant privilege logs. The parties may also submit memoranda setting forth their arguments, not to exceed five pages.
May 26, 2026	A discovery conference will be held at 3:00 PM EDT . The conference will be held via Teams; counsel will receive a link.
July 31, 2026	Fact depositions end; joint status report due
August 31, 2026	Expert reports due
September 30, 2026	Rebuttal expert reports due; expert depositions begin
October 26, 2026	Discovery closed
November 9, 2026	Meeting to discuss joint prehearing statement must be held by this date; exhibits must be exchanged by this date
December 2, 2026	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due
TBD	I will set the date for the prehearing conference after receiving the joint prehearing statement

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Alex M. Chintella
Administrative Law Judge